

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Adler	Team: Squad #3	CCRB Case #: 202007752	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/31/2020 4:57 PM, Friday, 01/31/2020 7:00 PM	Location of Incident: 106 West 145 Street and 506 Lenox Avenue	Precinct: 32	18 Mo. SOL 7/31/2021	EO SOL 3/17/2022	
Date/Time CV Reported Tue, 11/24/2020 10:03 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 11/24/2020 10:03 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. SGT Aditya Kanojia	04779	950661	032 PCT
3. POF Shpresa Tulovic	17596	961397	032 PCT
4. POM Christian Balbi	05762	951520	032 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joshua Polo	00489	966280	032 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Aditya Kanojia	Abuse: At 106 West 145th Street in Manhattan, Sergeant Aditya Kanojia forcibly removed § 87(2)(b) to the hospital.	
B.POM Christian Balbi	Force: At § 87(2)(b) Police Officer Christian Balbi used physical force against § 87(2)(b)	
C.POF Shpresa Tulovic	Force: At § 87(2)(b) Police Officer Shpresa Tulovic used physical force against § 87(2)(b)	
D. Officers	Abuse: At § 87(2)(b) officers damaged § 87(2)(b)'s property.	

Case Summary

On November 24, 2020, § 87(2)(b) filed this complaint in person at the CCRB.

On January 31, 2020, at approximately 4:57 P.M., Sgt. Aditya Kanojia, PO Joshua Polo, PO Shpresa Tulovic, and PO Christian Balbi, all assigned to the 32nd Precinct, responded to the National Action Network (NAN) office, located at 106 West 145th Street in Manhattan, after receiving an assignment regarding § 87(2)(b) who was refusing to leave the office. Sgt. Kanojia forcibly removed § 87(2)(b) to § 87(2)(b) in Manhattan (**Allegation A, Abuse of Authority: § 87(2)(g)**). While at the hospital, PO Balbi and PO Tulovic allegedly physically fought with § 87(2)(b) (**Allegations B and C, Force: § 87(2)(g)**) and unidentified officers allegedly damaged his cell phone (**Allegation D, Abuse of Authority: § 87(2)(g)**). § 87(2)(b) was not arrested or given any summonses.

The investigation obtained body-worn camera (BWC) footage of the incident from Sgt. Kanojia, PO Polo, PO Tulovic, and PO Balbi (**01-04 Board Review**).

Findings and Recommendations

Allegation (A) Abuse of Authority: At 106 West 145th Street in Manhattan, Sergeant Aditya Kanojia forcibly removed § 87(2)(b) to the hospital.

It is undisputed that on January 31, 2020, officers arrived at the NAN office at 106 West 145th Street in Manhattan, where they handcuffed § 87(2)(b) and forcibly removed him to § 87(2)(b) in Manhattan.

During his interview with the CCRB, § 87(2)(b) stated that he arrived at the NAN office at an unknown time when it was dark outside, after having been followed by unknown officers on the subway (**05 Board Review**). At the NAN office, § 87(2)(b) showed staff members photographs of these officers. Then an issue arose between § 87(2)(b) and the staff members; § 87(2)(b) was unable to provide any details about this issue. Afterward, police officers arrived at the NAN office. § 87(2)(b) did not know if the NAN staff had called for the officers or if the officers just arrived on their own. The officers told § 87(2)(b) to stay inside the office, and he did. The officers then went outside. After some time, the officers came back inside, at which time they handcuffed § 87(2)(b) and claimed something was wrong with him. After officers forcibly removed § 87(2)(b) to § 87(2)(b) in an ambulance, § 87(2)(b) remained in the hospital for several days.

In his unverified phone statement, § 87(2)(b) § 87(2)(b), stated that on the day of the incident § 87(2)(b) had arrived at the NAN office to complain about issues with law enforcement (**06 Board Review**). After § 87(2)(b) spoke with § 87(2)(b), § 87(2)(b) became “belligerent” and “agitated” and was acting erratically in that he would not listen to staff members and kept speaking in an agitated voice and aggressive tone. The NAN staff tried to calm him down, but he would not listen to anyone. He refused to leave the NAN office for six hours. To § 87(2)(b) § 87(2)(b)'s erratic behavior seemed like evidence that he could have posed a danger to himself or others since § 87(2)(b) did not know what § 87(2)(b) was capable of. § 87(2)(b) was not doing anything specific that made § 87(2)(b) feel that way besides speaking in an aggressive tone, refusing to leave, and refusing to listen to anyone. § 87(2)(b) did not know who called the police, but officers arrived shortly thereafter. When officers were present, § 87(2)(b) was acting “crazy” by displaying erratic behavior, speaking loudly and aggressively, and not listening to instructions.

In his unverified phone statement, § 87(2)(b) stated that § 87(2)(b) arrived at the office at 10 A.M. or 11 A.M. and spoke with § 87(2)(b) (**07 Board Review**). After that, § 87(2)(b) refused to leave, alternating between sitting in a chair and pacing around the office, which led NAN staff to be concerned for his mental health. § 87(2)(b) did not recall what § 87(2)(b) was saying but noted that he did not threaten anyone. The NAN staff members were primarily concerned

that § 87(2)(b) was a danger to himself since “you never know what could happen” and by refusing to leave § 87(2)(b) had demonstrated an unwillingness to go along with the office’s procedures. § 87(2)(b) did not know who called the police and did not hear the officers’ conversation with § 87(2)(b). § 87(2)(b) did not know whose decision it was to remove § 87(2)(b) to the hospital and did not see any ambulances arrive.

§ 87(2)(b) identified as a witness by § 87(2)(b) stated that he did not recall the incident **(08 Board Review)**. According to § 87(2)(b) and § 87(2)(b) § 87(2)(b) was no longer employed by NAN **(07-08 Board Review)**. No NAN employee to whom the investigation spoke had § 87(2)(b)’s contact information.

During her interview, EMT § 87(2)(b) identified by the investigation as one of the EMTs who arrived, stated that she did not recall the incident **(09 Board Review)**.

At 1:08 in Sgt. Kanojia’s BWC attached to IA 29, it is approximately 5PM, and Sgt. Kanojia and PO Polo are about to enter the NAN office **(01 Board Review)**. An unidentified staff member greets them at the door and states, “Gentleman is in there. They’ll explain it to you, but he has a little mental disorder.” Sgt. Kanojia and PO Polo then enter the office, § 87(2)(b) is sitting still on a chair approximately 10 feet away. When § 87(2)(b) sees the officers, he immediately puts his hands up. § 87(2)(b) then tells the officers that § 87(2)(b) arrived at the office at 11:30 A.M. or 12 P.M. and “thinks NYPD is following him. He just revealed today for the first time – he’s been here several times, three or four times – he just revealed today he had a short stay in a mental facility. So that’s why I knew what I was dealing with. And I thought he would leave by now. You see what time it is. [...] We don’t want him arrested or anything [...] but we told him we’re leaving at 5 o’clock.” At 2:24, PO Polo walks toward § 87(2)(b) who stands up. PO Polo walks closer to § 87(2)(b) and tells him to take a seat. PO Polo states, “No, you’re good [...] take a seat and we’ll talk.” § 87(2)(b) takes a few steps backward and states, “If I don’t take a seat – y’all are getting—” He then raises his hand over his head and states, “No drama. I don’t want no drama.” PO Polo asks § 87(2)(b) what will make him more comfortable. § 87(2)(b) states, “Let’s go outside and talk [...] but I need somebody there with me.” § 87(2)(b) states, “I’ll be outside.” The officers then walk toward the front door, leaving § 87(2)(b) alone by the seats where puts on a scarf and asks if he can leave his belongings inside. Officers are talking with § 87(2)(b) near the door and do not seem to hear § 87(2)(b)’s question.

At 3:34 in the same video, as the officers, § 87(2)(b) and § 87(2)(b) exit the office, PO Polo states, “We’re just here for you.” § 87(2)(b) frowns, his eyebrows arch upward and he places his hands against his chest with palms open and fingers spread apart. He then raises his hands above his head and states, “Why are you here for me for?” PO Polo states, “You can put your hands down. You’re not in trouble.” § 87(2)(b) continues to stand still with his hands raised. Sgt. Kanojia states, “Trying to provide anything you need from us.” § 87(2)(b) takes a step in the direction of the door with his hands still raised and states, “Can I go back inside? Please?” Sgt. Kanojia states, “Just talk to us.” PO Polo states, “You just told us you wanted to come outside.” § 87(2)(b) steps back to his original position, his hands still raised, and states, “Why are y’all – secret stuff – why – you just said it wasn’t for me. You just said it wasn’t for me.” PO Polo states, “No, no, I said, we want to know if everything is all right with you.” § 87(2)(b) raises his voice slightly, and states, “You said, ‘You good, you good, you good.’” He points at § 87(2)(b) and states, “You said, ‘You good, you good, you good.’ Why did you secretly do that?” § 87(2)(b) is one step closer to the front door with his hands still partially raised. § 87(2)(b) states, “You were refusing to leave.” § 87(2)(b) states, with his voice still slightly raised, “I wasn’t refusing to leave. I told you guys – look, you got your body cameras on. I got nothing on me, no nothing.” § 87(2)(b) then raises his hands back above his head. He states, “Can I get what I gotta get out of my—” He slowly lowers his right hand toward his shirt pocket while leaving his left hand raised above his head. Then he pulls out a wallet, his cell phone, and some papers, and raises them back above his head. He then states, “That’s all I got on me.” Standing with his hands still raised, he moves his chest and head slightly toward the officers and states, “Now y’all know I got nothing – y’all make me more vulnerable.” Sgt. Kanojia states,

“Can I speak?” § 87(2)(b) states, “No, I don’t want – I’ll sit right here, I don’t want to go nowhere,” and steps backward toward the front of the building with his arms still raised above his head. Sgt. Kanojia states, “Can we call an ambulance – check you out?” § 87(2)(b) states, “No, why y’all coming up on me like that.” He then opens the front door and reenters the office.

At 4:48 in the same video, PO Polo asks, “What exactly do you—” and § 87(2)(b) states, “I don’t know. I don’t know. He’s a little off. Do you have somebody you could call to deal with mental health?” Sgt. Kanojia states, “We gotta take him to the hospital then.” § 87(2)(b) frowns and shakes his head. PO Balbi then arrives and Sgt. Kanojia explains the situation to him. § 87(2)(b) states, “He’s not a threat or anything.” At 5:43 in the video, PO Balbi states, “How do you know he’s got mental issues?” § 87(2)(b) states, “He mentioned staying in the facility.” At 15:17 in the video, § 87(2)(b) asks if the officers would allow § 87(2)(b) to get on the train and leave. PO Balbi states, “If you’re telling us that he didn’t take his medication, he needs to be checked out. We can’t just let him go.” § 87(2)(b) states, “I don’t know if he takes medication. I just know he mentioned he stayed at a [...] mental hospital.” Sgt. Kanojia states, “So clearly he needs medical attention.” § 87(2)(b) states, “Clearly needs mental help. Yes.” At 20:20, § 87(2)(b) comes outside and says that § 87(2)(b) is recording people for Facebook Live. She states, “He just said my father’s name on his Live. I feel threatened now because I don’t know who’s on his Live. He just put me on his Live and I’ve been helping him for 10 hours.” At 1:23:44, after calling for an ambulance multiple times, Sgt. Kanojia approaches a § 87(2)(b) ambulance that has arrived for a different patient and asks them to call an ambulance for him. At 1:24:38, an EMT identified by the investigation as § 87(2)(b) states that she can take § 87(2)(b) if her patient, who no longer needs care, walks away. EMT § 87(2)(b) asks Sgt. Kanojia what § 87(2)(b) is doing, and he responds, “He’s off his meds or something. He’s just been talking – talkative. All day, he didn’t want to leave. [...] I’ll have the cops with you inside. If you can just drop him off at Harlem that would be really, really helpful.” EMT § 87(2)(b) states, “Fine.” Sgt. Kanojia then walks away with the other patient to help her find a cab and tells officers to bring § 87(2)(b) to the ambulance.

At 3:42 in PO Balbi’s BWC attached to IA 32, PO Balbi first requests an ambulance over the radio **(04 Board Review)**. At 1:26:25, § 87(2)(b) enters the ambulance; EMTs have not examined him or asked him any questions at this point. At 1:38:20, while they are already driving to the hospital, EMT § 87(2)(b) asks § 87(2)(b) if he hears voices and § 87(2)(b) states, “No, I don’t hear voices.”

Sgt. Kanojia testified that a commanding or executive officer told him to respond to the location; he did not recall who that was or what information they provided **(10 Board Review)**. At the NAN office, § 87(2)(b) told Sgt. Kanojia that § 87(2)(b) had been sitting in the office for a long period of time and was refusing to leave even though the office was closing. Sgt. Kanojia then asked § 87(2)(b) questions for five to 10 minutes. § 87(2)(b) was not answering these questions and was not coherent when he spoke, leading Sgt. Kanojia to believe that he was “not all there.” Sgt. Kanojia determined that § 87(2)(b) was a danger to himself because he was unable to answer simple questions and had been sitting in the same place for a long time when the office was closing. Sgt. Kanojia was unable to further explain how this made § 87(2)(b) a danger to himself. Sgt. Kanojia did not recall if § 87(2)(b) did anything specific that led him to believe he was a danger to himself or if § 87(2)(b) made any threatening remarks. Sgt. Kanojia stated that it was his decision to remove § 87(2)(b) to the hospital because he needed medical help. He did not recall which officer called for the ambulance. When EMS arrived, they also determined that § 87(2)(b) should be removed to the hospital. Sgt. Kanojia did not recall how EMS made this determination. After watching his BWC attached to IA 29 from the 4:23 minute to the 6:00 minute mark, Sgt. Kanojia added that the decision to remove § 87(2)(b) to the hospital was also based on § 87(2)(b)’s statement that § 87(2)(b) had a mental issue. Once § 87(2)(b) brought up § 87(2)(b)’s mental issue, the officers could not determine what § 87(2)(b) might do. For that reason, they called EMS to make the determination. Sgt. Kanojia also recalled § 87(2)(b) stating that § 87(2)(b)’s refusal to leave was a “safety concern,” but stated that § 87(2)(b) did not specify why this was a safety concern. After

watching his own BWC attached to IA 29 from the 1:48 minute to the 4:42 minute mark, Sgt. Kanojia stated that it showed § 87(2)(b) not listening to specific commands regarding staying outside and talking to the officers; he clarified that this was what he meant when he stated that § 87(2)(b) was not answering questions. After watching his own BWC attached to IA 30 from the 1:23:40 minute to the 1:24:58 minute mark, Sgt. Kanojia stated that he did not want to change his testimony or add any details about whose decision it was to send § 87(2)(b) to the hospital and that he did not recall if EMS examined § 87(2)(b) before determining that they would remove him to the hospital.

PO Balbi testified that the only reason § 87(2)(b) was removed to the hospital was that § 87(2)(b) informed officers that he had a psychiatric history (**11 Board Review**). He stated that § 87(2)(b) may have posed a threat to others because he would not leave the location and had been there for hours, he put his phone in § 87(2)(b) face, and according to § 87(2)(b) he had stated that he did not want to be touched by the police. PO Balbi did not recall if § 87(2)(b) posed a threat to himself.

PO Tulovic testified that officers determined that § 87(2)(b) was an emotionally disturbed person because § 87(2)(b) informed them that he had a psychiatric history, was off his medication, and was exhibiting abnormal behavior by refusing to leave (**12 Board Review**). Officers therefore called for EMS so that EMS could determine if § 87(2)(b) was cleared to leave. She noted that § 87(2)(b) might have been a threat to himself because he was “an EDP” and acting unpredictably. When asked, she was unable to provide more details about his unpredictable behavior or how it showed he was a threat to himself.

AIDED report § 87(2)(b) prepared for § 87(2)(b) by PO Tulovic notes that § 87(2)(b) did not attempt to physically harm himself or others, did not place himself in a dangerous situation, did not physically or verbally threaten others, did not speak of harming himself or others, and was not unable to care for himself (**13 Board Review**). In the “other” section, PO Tulovic noted that § 87(2)(b) was “acting irrationally and erratically.” In the comments, PO Tulovic wrote that § 87(2)(b) was “acting erratic,” stated that he was “just released from a [h]ospital for psychological hold,” and told EMS that he was hearing voices.

NYPD Event #D20013120907 shows that the event was created as a 10-61, or a stationhouse assignment with no related 911 call (**14 Board Review**). The Event Information shows that officers first called for EMS at 5:04 P.M. Officers requested updates on the ambulance arrival time at 5:08 P.M., 5:14 P.M., 5:20 P.M., 5:41 P.M., and 5:47 P.M. At 6:13 P.M., officers received a radio message that there was no estimated arrival time for the ambulance. At 6:35 P.M., EMS transported § 87(2)(b) to § 87(2)(b).

The investigation was unable to obtain medical records from § 87(2)(b) because § 87(2)(b) refused to sign a HIPAA form (**05 Board Review**).

NYPD Patrol Guide Procedure 221-13 defines an emotionally disturbed person as one “who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others” (**15 Board Review**). When an officer reasonably believes that a “person who is apparently mentally ill or emotionally disturbed, must be taken into protective custody because the person is conducting himself in a manner likely to result in a serious injury to himself or others,” officers are to restrain the individual if necessary and “have [the] EDP removed to hospital in ambulance.”

New York State Penal Law 140.05 states that “[a] person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises” (**16 Board Review**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (B) Force: At § 87(2)(b) Police Officer Christian Balbi used physical force against § 87(2)(b)

Allegation (C) Force: At § 87(2)(b) Police Officer Shpresa Tulovic used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: At § 87(2)(b) officers damaged § 87(2)(b) s property.

During his CCRB interview and a follow-up statement, § 87(2)(b) stated that while at § 87(2)(b) officers wrestled with him and confiscated his phone, which was broken when he got it back **(05, 17 Board Review)**. § 87(2)(b) was unable to describe how the officers wrestled with him besides stating that both he and the officers threw each other around, which led to a hole being broken in the hospital wall. After he got into the fight with the officers, § 87(2)(b) s phone was still not broken. However, when he was released from the hospital, his phone's screen and camera were broken and a footprint was visible on the phone. § 87(2)(b) believed that officers had intentionally stepped on his phone to smash it up.

§ 87(2)(b) provided the investigation with two photos of a phone with a cracked screen and back, as well as one photo of a receipt from § 87(2)(b) Emergency Department **(18 Board Review)**. The photos are not dated. The color of the frame around the phone's screen is completely black. The receipt is dated January 31, 2020, includes § 87(2)(b) s name, and lists his belongings. Among the listed items is "1 cell phone (cracked screen)." There is only one cell phone listed among § 87(2)(b) s belongings.

The investigation received negative results in response to a request for a Threat Resistance and Injury Worksheet **(19 Board Review)**.

Both PO Balbi and PO Tulovic testified that they did not recall how long they stayed with § 87(2)(b) at the hospital **(11-12 Board Review)**. Both officers further stated that they did not use force against § 87(2)(b) in the hospital and did not know of any other officer who did. They also testified that they did not stomp on or otherwise damage § 87(2)(b) s cell phone, did not know of any officer who did so, and were unaware of § 87(2)(b) s cell phone becoming damaged during the incident.

At 1:43:14 in PO Balbi's BWC attached to IA 32, PO Balbi arrives at the hospital in a vehicle and PO Tulovic and § 87(2)(b) exit the ambulance **(04 Board Review)**. PO Balbi and PO Tulovic then enter the hospital with § 87(2)(b) PO Balbi turns off his BWC seconds later.

At 17:20 in PO Tulovic's BWC attached to IA 31, the front screen of § 87(2)(b) s cell phone is visible **(03 Board Review)**. The phone's screen is not cracked, and the color of the frame around the screen is partially white. The phone is not inside a case.

The investigation did not obtain any video footage from inside the hospital.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) s receipt with from § 87(2)(b) shows that his belongings at the time included a cell phone with a cracked screen. However, the photograph of the phone that § 87(2)(b) provided appears to be a different one than the cell phone he had at the NAN office; this is because the cell phone in the photos, which are undated, has a black frame while the cell phone in the BWC

videos has a white frame. Further, while the receipt makes clear that § 87(2)(b) had a cell phone with a cracked screen in his possession, and BWC evidence shows that § 87(2)(b)'s cell phone screen was not cracked at the NAN office, it is unclear how the screen became cracked. § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to nine additional CCRB complaints, § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
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§ 87(2)(b)
§ 87(2)(b)
- Sgt. Kanojia has been a member of service for 10 years and this is the first CCRB complaint in which he has been a subject.
- PO Balbi has been a member of service for nine years and has been a subject in two other CCRB complaints, one of which involves a use of force, and neither of which were substantiated.
- PO Tulovic has been a member of service for five years and has been a subject in one other CCRB complaint, which was not substantiated.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On September 14, 2021, the investigation submitted a request to determine if a Notice of Claim was filed; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt (**21 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Squad: 3

Investigator: Rachel Adler Investigator Rachel Adler 9/20/2021
Signature Print Title & Name Date

Squad Leader: Olga Golub IM Olga Golub 09/21/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

